

25CHCV00824 25CHCV00824

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Case Number: 25CHCV00824 Hearing Date: August 12, 2026 Dept: F49

Dept. F49

Date: 8/12/26

Case Name: Maria Hortencia Ortega v. Armen Hartoonian,
and Does 1-20

Case No. 25CHCV00824

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

AUGUST 12, 2026

MOTION FOR LEAVE
TO FILE A CROSS-COMPLAINT

Los Angeles Superior
Court Case No. 25CHCV00824

Motion filed: 5/1/26

MOVING PARTY: Defendant Armen Hartoonian and
proposed cross-complainants A. Hartoonian and S. Hartoonian

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: An order from this Court granting Defendant Armen Hartoonian and proposed cross-complainants A. Hartoonian and S. Hartoonian leave to file the proposed cross-complaint against Plaintiff Maria Hortencia Ortega.

TENTATIVE RULING: The motion is GRANTED.

BACKGROUND

This action arises from injuries allegedly sustained by Plaintiff Maria Hortencia Ortega ("Plaintiff") during a motor vehicle collision that occurred on March 7, 2023. On March 7, 2025, Plaintiff filed the Complaint against Defendants Armen Hartoonian ("Armen") and Does 1 through 20, alleging the following causes of action: (1) general negligence, and (2) motor vehicle negligence.

On April 8, 2025, Armen filed an Answer. On July 10, 2025, Armen and proposed cross-complainants A. Hartoonian and S. Hartoonian, by and through their Guardian ad Litem, Armen, filed a motion for leave to file a cross-complaint. On October 23, 2025, while that motion was pending, the Court, at the request of Plaintiff, dismissed the entire action with prejudice. On April 28, 2026, the Court set aside dismissal of the action.

On May 1, 2026, Armen, A. Hartoonian, and S. Hartoonian filed the instant motion for leave to file a cross-complaint against Plaintiff (the "Motion").

No opposition or reply papers have been filed.

ANALYSIS

If a defendant "fails to allege in a cross-complaint any related cause of action which (at the time of serving his answer to the complaint) he has against the

plaintiff," he may not assert the related cause of action against the plaintiff in any other proceeding." (Code Civ. Proc., § 426.30.) Such cross-complaints are compulsory.

If a defendant does not, at the time of serving the answer, allege any related cause of action he has against the plaintiff in a cross-complaint, he must apply to the court for leave to file a cross-complaint. (Code Civ. Proc., § 426.50.) The court must grant leave if the defendant who failed to plead the cause of action acted in good faith. (Ibid.) Leave to amend is granted liberally to avoid forfeiture of causes of action. (Ibid.)

The statutes governing permissive cross-complaints also require the cross-complaint to be filed before or concurrently with filing the answer. (Code Civ. Proc., § 428.50, subd. (a).) A permissive cross-complaint may be filed by "[a] party against whom a cause of action has been asserted in a complaint or cross-complaint," who has a cause of action arising out of the same transaction or occurrence or has a claim, right, or interest in the controversy. (§ 428.10, subd. (b).)

A.

Motion for Leave to File a Cross-Complaint

Armen, A. Hartoonian, and S. Hartoonian seek leave to file a cross-complaint against Plaintiff. Their proposed cross-complaint, attached to the Motion, alleges general negligence and motor vehicle negligence against Plaintiff for a motor vehicle accident occurring on March 7, 2023. (Kaiserian Decl., Exh. A.) This is the same accident upon which Plaintiff's Complaint is based. (Compl., ¶ GN-1.)

The proposed cross-complaint accordingly asserts causes of action against Plaintiff that arise out of the same occurrence as the Complaint, making the cross-complaint compulsory as to Armen. (Code Civ. Proc., §§ 426.10, 426.30.) The relevant standard applicable to Armen is thus that he acted with good faith in failing to file the cross-complaint earlier.

Armen's counsel, Ani Kaiserian ("Kaiserian") attests that her firm undertook representation of Armen the day after the accident and had been investigating Plaintiff's insurance coverage and negotiating an uninsured motorist bodily injury claim with Armen's insurer when Plaintiff filed this action against Armen. (Kaiserian Decl., ¶¶ 7-13.) Armen's insurer appointed an

attorney to represent Armen solely in his capacity as a defendant to Plaintiff's suit. (Id., ¶ 14.) Kaiserian discussed the pleadings with insurance-appointed counsel, indicating that her firm intended to file a cross-complaint, and both attorneys agreed that the answer and the cross-complaint would be filed the same day to avoid unnecessary motion practice. (Id., ¶ 15.)

Despite the agreement, the attorneys did not coordinate the filings. Insurance-appointed counsel sent an email to another attorney in Kaiserian's office indicating that the answer would be filed that day and instructing the attorney to provide him with a cross-complaint or file one himself the same day. (Kaiserian Decl., ¶ 16, Exh. E.) The answer was then filed without concurrent filing of the cross-complaint.

Kaiserian sought to resolve the issue by obtaining a stipulation from all parties permitting the filing of the cross-complaint. (Kaiserian Decl., ¶ 18.) Plaintiff declined to stipulate to the filing, and Kaiserian's office then moved for leave to file the cross-complaint. (Id., ¶ 19.) While the motion was pending, insurance-appointed counsel settled with Plaintiff, and Plaintiff requested dismissal of the entire action with prejudice. (Id., ¶ 20.) The Court dismissed the action, vacating future hearing dates. Armen moved for relief from the dismissal, and the Court set aside the dismissal on April 28, 2026. This Motion was filed three days later.

The Court finds that Armen acted with good faith in failing to file the cross-complaint earlier. Armen's counsel relied on insurance-appointed counsel not to file the answer without the cross-complaint, sought to resolve the failure to file informally, and diligently moved for relief when she could not obtain stipulation of all the parties. Leave to file therefore must be granted as to Armen.

As to A. Hartoonian and S. Hartoonian, they are not parties to the action. They accordingly do not have standing to move to file a cross-complaint under the relevant statutes, which presume that a cross-complainant is a party against whom a complaint has been filed or a cause of action has been asserted. (Code Civ. Proc., §§ 426.30, 426.50, 428.10, 428.50.) Nevertheless, they may be joined by Armen as cross-complainants insofar as they would be permitted under the joinder statutes to maintain an independent action against Plaintiff. (§ 428.20.)

Pursuant to Code of Civil Procedure section 378, “[a]ll persons may join in one action as plaintiffs if: (1) [t]hey assert any right to relief jointly, severally, or in the alternative, in respect of or arising out of the same transaction, occurrence, or series of transactions or occurrences and if any question of law or fact common to all these persons will arise in the action; or (2) [t]hey have a claim, right, or interest adverse to the defendant in the property or controversy which is the subject of the action.” Here, the proposed cross-complaint alleges that A. Hartoonian and S. Hartoonian were passengers in Armen’s vehicle at the time of the accident and suffered resulting mental, emotional, and physical injury. (Kaiserian Decl., Exh. A.) There are accordingly common questions concerning liability and causation as to all three cross-complainants. It is therefore proper to join A. Hartoonian and S. Hartoonian as cross-complainants against Plaintiff.

Based on the foregoing, the Court GRANTS the Motion as to Armen, and finds that Armen may join A. Hartoonian and S. Hartoonian as cross-complainants.

CONCLUSION

The Court GRANTS Defendant Armen Hartoonian’s motion for leave to file a cross-complaint against Plaintiff Maria Hortencia Ortega. Armen Hartoonian is ordered to serve and file his proposed cross-complaint within 10 days of this order.

Moving party to give notice.